

25STCP04265 25STCP04265

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 25STCP04265 Hearing Date: August 3, 2026 Dept: 309

Superior Court of

California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

IN RE 1331 ROXBURY DRIVE #4,

LOS ANGELES CA 90035

Case

No.: 25STCP04265

Hearing Date: August 3, 2026

Roxbury's claim for surplus funds is

DENIED, WITHOUT PREJUDICE.

On 11/5/2025,

Petitioner Clear Recon Corp filed a petition regarding unresolved claims and

deposit of undistributed surplus proceeds of trustee's sale regarding 1331

Roxbury Drive #4, Los Angeles CA 90035.

On

5/14/2025, 1331 South Roxbury Drive Condominium Association (Roxbury) filed a motion claiming \$41,171.26 in surplus funds to this action.

Discussion

This matter

involves surplus funds following a trustee sale of real property located at 1331 South Roxbury Drive #4, Los Angeles CA 90035 (the Property). The Property was previously owned by Joseph D. Izhakpor (Debtor). A trustee sale by Clear Recon Corp. (undertaken by firm, Alridge Pite, LLP) has rendered a surplus. Claimant is informed and believes the surplus is in the amount of \$190,236.61. Trustee and Petitioner, Clear Recon Corp, notified Roxbury and other claimants of the intent distribute the surplus funds.

Claimant

Roxbury made their claim to Clear Recon Corp on or about 9/9/2024. After receipt of 4 claims from junior lien holders, on 11/5/2025, Clear Recon Corp filed a Notice of Petition to the Superior Court to Deposit Surplus Funds, indicating that the surplus funds would be deposited with this Court and that a claim should be made thereon.

Civil Code section 2924j (b) and (c) provide:

(b) The trustee shall exercise due diligence

to determine the priority of the written claims received by the trustee to the trustee's sale surplus proceeds from those persons to whom notice was sent pursuant to subdivision (a). In the event there is no dispute as to the priority of the written claims submitted to the trustee, proceeds shall be paid within 30 days after the conclusion of the notice period. If the trustee has failed to determine the priority of written claims within 90 days following the 30-day notice period, then within 10 days thereafter the trustee shall deposit the funds with the clerk of the court pursuant to subdivision (c) or file an interpleader action pursuant to subdivision (e). Nothing in this section shall preclude any person from pursuing other remedies or claims as to surplus proceeds;

(c) If, after due diligence, the trustee is

unable to determine the priority of the written claims received by the trustee to the trustee's sale surplus of multiple persons or if the trustee determines there is a conflict between potential claimants, the trustee may file a declaration of the unresolved claims and deposit with the clerk of the superior

court of the county in which the sale occurred, that portion of the sales proceeds that cannot be distributed, less any fees charged by the clerk pursuant to this subdivision. The declaration shall specify the date of the trustee's sale, a description of the property, the names and addresses of all persons sent notice pursuant to subdivision (a), a statement that the trustee exercised due diligence pursuant to subdivision (b), that the trustee provided written notice as required by subdivisions (a) and (d), and the amount of the sales proceeds deposited by the trustee with the court. Further, the trustee shall submit a copy of the trustee's sales guarantee and any information relevant to the identity, location, and priority of the potential claimants with the court and shall file proof of service of the notice required by subdivision (d) on all persons described in subdivision (a).

Moreover, Civil Code section 2924j (d) provides:

(d) Before the trustee deposits the funds with the clerk of the court pursuant to subdivision (c), the trustee shall send written notice by first-class mail, postage prepaid, to all persons described in subdivision (a) informing them that the trustee intends to deposit the funds with the clerk of the court and that a claim for the funds must be filed with the court within 30 days from the date of the notice, providing the address of the court in which the funds were deposited, and a telephone number for obtaining further information.

Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled by the court, the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein. Where the amount of the deposit is thirty-five thousand dollars (\$35,000) or less, a proceeding pursuant to this section is a limited civil case. The court shall distribute the deposited funds to any and all claimants entitled thereto.

Given that no funds have been deposited here, the Court finds that the claim here is premature. (See Claim, 3: 21-22.)

In light of this, the Court declines to take up the motion at this time.

Based on the foregoing, Roxbury's claim
for surplus funds is denied, without prejudice.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits
on the tentative, the party's email must include the case number and must
identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this
tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the
tentative and there are no appearances at the hearing, the motion may be placed
off calendar. For more information, please contact the court clerk at (213)
633-0517.